

13. 9:00 AM CASE NUMBER: L25-10978

CASE NAME: EMILIO RUBIO VS. WILLARD STARK

***HEARING ON MINOR'S COMPROMISE**

FILED BY:

TENTATIVE RULING:

Disposition

Upon review of Petition to Approve Compromise of Pending Action, which included medical records of the injury to the minor Plaintiff, the court approves the Compromise.

Plaintiff shall draw and file the Order approving the Compromise.

Moreover, the court approves the Order to Deposit Funds in the Blocked Account on behalf of the minor Plaintiff, as filed by Plaintiff on December 31, 2025.

14. 9:00 AM CASE NUMBER: MSL21-00864

CASE NAME: INVESTMENT RETRIEVERS VS. RIVAS

***HEARING ON MOTION IN RE: FOR ORDER IMPOSING TERMINATING SANCTION AGAINST
DEFENDANT FOR FAILURE TO OBEY ORDER COMPELLING RESPONSES**

FILED BY: INVESTMENT RETRIEVERS, INC.

TENTATIVE RULING:

Background

Plaintiff filed, on October 29, 2025, a Motion for an order imposing a terminating sanction against Defendant for failure to obey a court order compelling discovery responses.

The Motion is unopposed.

Analysis

The court has the discretion to order terminating sanctions if a misuse of the discovery process is found. CCP § 2023.030(c). CCP § 2030.290(c) and CCP § 2030.300(c) state in pertinent part: "If a party then fails to obey an order compelling answers, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010)."

The court has held that terminating sanctions have been appropriate when a respondent "tendered discovery responses that submitted no meaningful information, repeatedly ignored meet and confer letters, continued to parrot the same answers after two orders compelling it to give responses, and propounded no discovery of its own until faced with a motion for terminating sanctions." *Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc.*, 163 Cal. App. 4th 1093 (Cal. App. 3d Dist. 2008).

However, trial courts are to use such a sanction sparingly, especially when used as a first measure, and should often consider less severe alternatives in a first attempt to prod a party to comply. *Lopez v. Watchtower Bible and Tract Society of New York, Inc.* (2016) 246 CA4th 566, 604.

In the instant matter, the Defendant has failed to follow the court's order to respond to Plaintiff's discovery request, an order that was issued on July 22, 2024, and required compliance within 20 days. No response has been provided by Defendant in well over a year.

Yet this is the court's first impression of this request since the court's own order compelling responses on July 22, 2024. The court notes that in that hearing no warning was given to the Defendant that terminating sanctions may flow for a failure to comply.

As a consequence, this court feels evidentiary sanctions are appropriate.

Disposition

Plaintiff's motion is granted in part and denied in part.

Plaintiff's request for Terminating Sanctions is denied.

Evidentiary Sanctions against the Defendant are granted.

Defendant will be precluded from presenting any affirmative evidence on any topic related to the discovery matters at issue in the court's order on July 22, 2024. Specifically, the Defendant shall not be permitted to present any evidence on issues related to the first sets of requests for admissions, form interrogatories, and document requests that were propounded by the Plaintiff.

Plaintiff to draw Order and file.

15. 9:00 AM CASE NUMBER: N25-2433

CASE NAME: UFCW-NORTHERN CALIFORNIA EMPLOYERS JOINT PENSION TRUST FUND (FUND NO. 100) VS. JUG SHOP, INC.

HEARING IN RE: VERIFIED PET. TO CONFIRM

ARBITRATION AWARD & FOR

ATTY FEES

FILED BY: UFCW-NORTHERN CALIFORNIA EMPLOYERS JOINT PENSION TRUST FUND (FUND NO. 100)

***TENTATIVE RULING**

Petitioner filed a Petition to Confirm Arbitration Award on November 26, 2025. The hearing on the matter is scheduled for January 20, 2026.

The Petition is unopposed, yet there is no indication that Respondent has been served with notice of this hearing.

Disposition